

Legal English Test Answer Key

Criminal Law Foundations Total 100 points

Marking principle: Award points for legally correct meaning. Do not deduct points merely for minor grammar or spelling errors when the legal term and reasoning are clear.

Section A Matching 20 points

Question	Answer	Explanation
1	D	Deterrence prevents crime through the threat or experience of punishment.
2	E	Rehabilitation seeks to reform and reintegrate the offender.
3	F	Incapacitation restricts the offender's ability to commit further crimes.
4	G	Retribution imposes deserved and proportionate punishment.
5	H	Restorative justice seeks to repair harm with the people affected.
6	I	The harm principle focuses on preventing harm to others.
7	C	Legal moralism allows serious immorality itself to support criminalisation.
8	A	Actus reus is the external element.
9	J	Mens rea is the mental element.
10	B	An omission is a legally relevant failure to act.

Section B Multiple Choice 30 points

Question	Answer	Explanation
1	B	Actus reus may consist of conduct, circumstances and consequences.
2	C	A pure omission normally requires a legal duty to act.
3	A	The parent-child relationship creates a recognised duty.
4	B	The but-for question tests factual causation.
5	C	The conduct must remain an operating and substantial cause.
6	B	The defendant takes the victim as found.
7	A	Direct intention concerns the defendant's aim or purpose.
8	B	Recklessness involves consciously taking an unjustified risk.
9	A	Actus reus and mens rea must generally coincide.
10	C	The harm principle centres on harm or risk of harm to others.

Section C True or False 20 points

Question	Answer	Explanation
1	False	English criminal law has no general duty to rescue in every situation.
2	True	A contract may create a duty to act.
3	False	Factual and legal causation are separate requirements.
4	False	The thin-skull rule requires the defendant to take the victim as found.
5	False	Medical treatment breaks the chain only in exceptional circumstances.
6	False	Actus reus is the external element; mens rea is the mental element.
7	True	Both intention and recklessness may provide mens rea.
8	True	Deterrence is forward-looking and seeks to prevent crime.
9	False	The theories offer different justifications for criminalisation.
10	True	This is the general coincidence requirement.

Section D Complete the Sentences 10 points

Question	Answer	Explanation
1	actus reus	External element.
2	mens rea	Mental element.
3	intention	The result is the defendant's aim.
4	recklessness	Conscious and unjustified risk-taking.
5	duty	A legal duty is normally required for omission liability.
6	but for	Standard test of factual causation.
7	substantial	Operating and substantial cause.
8	omission	Failure to perform a legally required act.
9	harm	The harm principle.
10	rehabilitation	Reforming and reintegrating the offender.

Section E Short Legal Problems 20 points

Each case is worth 4 points: 1 point for identifying the principle, 1 point for stating the rule, and 2 points for applying the rule and reaching a supported conclusion.

Case 1 Voluntary act

A completely involuntary spasm is not a voluntary act. On the stated facts, Alice normally lacks the voluntary conduct required for actus reus. Award full credit for recognising that voluntariness is required and applying it to the spasm.

Case 2 Omission and duty

A parent has a recognised legal duty to care for a young child. The deliberate failure to provide available food may therefore form the actus reus of an offence.

Case 3 Factual causation

The but-for test is not satisfied because Daniel would have died at that time from the unrelated heart attack even without the poison. Carla did not cause the death on these facts, but her intention and conduct may support liability for attempted murder.

Case 4 Legal causation

The treatment has not broken the chain. The original wound remains an operating and substantial cause of death, so Eva may still be treated as the legal cause.

Case 5 Recklessness

Greg recognised a clear risk and continued anyway. This is the basic pattern of recklessness: conscious and unjustified risk-taking.

Score Check

Question	Answer	Explanation
A	20	10 questions x 2 points
B	30	10 questions x 3 points
C	20	10 questions x 2 points
D	10	10 questions x 1 point
E	20	5 cases x 4 points
Total	100	Final score